

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Monday, May 18, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, May 18, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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19CV-03412	David Allen vs Central Valley Concrete, Inc.
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Status Conference

Appearance required.

21CV-03369	Veronica Padron vs Bhavesh Patel, et al.
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Motion for an Order for Monetary Sanctions in the Amount of \$2,180 for Defendant Bhavesh Patel's Failure to Attend 3-4-2026 MSC & Request to Continue the TSC & the 6-9-2026 Trial date to 9-28-2026 to allow Plaintiff time to File a Motion for Summary Judgment with Regards to the Requests for Admission Deemed Admitted

Plaintiff's motion is GRANTED IN PART and DENIED IN PART.

Defendant Patel failed to attend the March 4, 2026, mandatory settlement conference. Merced County Superior Court Local Rule 3.6, subdivision (F) states in pertinent part, "If the defendant or other responsible party fails to appear at the settlement conference and

good cause is not shown, the Court may impose sanctions by way of costs, actual expenses, and counsel fees and order the case to proceed to trial on the date assigned.” (Local Rule 3.6, subd. (F).)

Defendant Patel failed to appear as required and has not shown good cause for the failure to appear.

The request for monetary sanction is **GRANTED**.

Monetary sanctions in the amount of \$2,180 are to be paid to Plaintiff’s counsel within fifteen (15) days of this court’s order.

The request to continue the trial is **DENIED**.

Good cause has not been shown to justify a trial continuance. Plaintiff’s counsel has had ample time to file a motion for summary judgment based on the Requests for Admission being deemed admitted, which were deemed admitted on March 27, 2024. Given the approaching trial date of June 9, 2026, any motion for terminating sanctions may be heard following a properly noticed motion and motion to shorten time.

Readiness Conference

Appearance required.

Order to Show Cause re: Sanctions

Appearance required.

24CV-04537 Mandeep Dhillon vs General Motors LLC, et al.

Order to Show Cause re: Dismissal – Notice of Settlement

Appearance required.

24CV-06515 Melvin Cooper vs Midwest Construction Services, Inc.

Case Management Conference

Appearance required.

25CV-05549 Emma Mungia vs City of Los Banos

Motion to Compel Further Responses to Plaintiff’s Request for Production of Documents, Set One, & Request for Sanctions

Plaintiff’s motion to compel further responses to Requests for Production of Documents, Set One, is GRANTED IN PART and DENIED IN PART.

On May 5, 2026, Defendant served further verified amended responses to Plaintiff's Requests for Production of Documents, Set One.

Accordingly, the motion to compel further responses is DENIED AS MOOT.

This leaves the issue of monetary sanctions.

Here, Defendant states that “[t]he requested documents were not in counsel’s possession and required coordination with the City to obtain.” (Khosravi Decl. ¶ 6). It is then stated that “Defendant obtained the documents shortly before the filing of this Opposition and produced them at the earliest opportunity thereafter . . .” (Khosravi Decl. ¶¶ 7, 9).

The inability to comply was not stated in Defendant’s responses to Plaintiff’s Requests for Production of Documents, Set One, requests 1 and 7. Nor did the responses state that the City of Los Banos was in possession of the documents at issue. (See Code Civ. Proc. §§ 2031.220, 2031.230) The responses were to object based on privilege and third-party privacy rights. Defendant then, in their March 26, 2026, letter stood firm on their original response, only alluding that “Defendant cannot produce materials containing such information in their current form.” (Khosravi Response Letter Dated March 26, 2026) There was no statement that there was an effort to obtain the documents and that they would be provided after review.

If Defendant had intended to provide a further response once the documents were obtained from the City, and after there was an opportunity to review and redact the privileged or private information, they should have stated so much either in their discovery responses or in their March 26, 2026, response to Plaintiff’s March 5, 2026, meet and confer letter.

Further, although amended responses were provided to Plaintiff they were not provided until after Plaintiff filed their motion to compel further responses. As such, Defendant willfully failed to timely comply with the discovery requests. Accordingly, Plaintiff was substantially justified in bringing this instant motion and is entitled to monetary sanctions.

The request for monetary sanctions is GRANTED.

Plaintiff requests monetary sanctions in the amount of \$2,038, which represents two (2) hours at \$1,019 per hour. The court finds hourly rate claimed to be excessive and not representative of reasonable attorney rates for the area. Accordingly, the court reduces the hourly rate to \$300 per hour.

Monetary sanctions in the amount of \$600 are to be paid to Plaintiff’s counsel within thirty (30) days of this court’s order.

The petition to enforce deposition subpoena is GRANTED.

Verizon is ordered to comply with the deposition subpoena and produce the records and information identified therein.

Petitioner is ordered to prepare and file a proposed order to be filed with this court within five (5) days.

26CV-01712 Joshua Alvarez vs Jeovanny Velasquez

Order to Show Cause re: Dismissal

Appearance required.

26CV-02278 Ashley Grose vs Renee Garavito

Order to Show Cause re: Restraining Order

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Law and Motion
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, May 18, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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22CV-00077	Debt Management Partners, LLC vs. Reynaldo Cardenas
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Motion to Vacate Default Judgment

Defendant's motion to vacate the default judgment entered on November 16, 2022, due to Defendant's lack of actual notice in time to defend the action is DENIED as untimely. Defendant's motion to vacate the default judgment pursuant to Code of Civil Procedure section 473.5 was untimely filed more than two years after the entry of default judgment. (Code Civ. Proc., § 473.5, subd. (a).) The Court also notes that the address where substituted service of the summons and complaint presumably was made in February 2022 matches Defendant's current address and is the same address used for numerous notices mailed to Defendant in this action before and after the date of entry of default judgment.

23CV-02820	LVNV Funding LLC vs Alicia Fulgium
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Claim of Exemption

Appearance required for judgment debtor.

25CV-02150

Navy Federal Credit Union vs. Jonathan P. King Fortmeyer

Motion to Enter Judgment Pursuant to CCP § 664.6

The unopposed motion by plaintiff Navy Federal Credit Union for entry of judgment against defendant Jonathan P. King Fortmeyer pursuant to the terms of the Stipulation and Order re: Settlement, Retention of Jurisdiction, and Dismissal filed on September 17, 2025, is GRANTED. Based on the evidence submitted by the moving party, the Court finds that Defendant did not comply with the terms of the settlement agreement. Dismissal is set aside and Plaintiff shall have judgment in the principal amount of \$9,594.02, plus attorney's fees of \$1,459.40 and \$443.55 in court costs for a total judgment amount of \$11,496.97.

The Court will sign the proposed order and proposed judgment submitted by Plaintiff with the moving papers.

26CV-00184

Taofeek Quadri vs. Vannak Sao

Motion for Temporary Restraining Order

Appearance required. The Court notes that on April 22, 2026, Plaintiff filed a written refusal to stipulate to a court commissioner serving as a temporary judge in this action.

26CV-01342

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
